

A January 12 letter from the Department of Personnel and Training (DoPT) of the Union ministry of home affairs (MHA) to the states has the latter up in umbrage. The letter called for responses by January 25 to a proposal for changes in sharing of bureaucrats from the All India Services (AIS), which includes the Indian Administrative Service (IAS), Indian Police Service (IPS) and Indian Forest Service (IFoS).

The DoPT letter comes in the wake of a perceived shortage of AIS officers in Union ministries. It says the states "are not sponsoring an adequate number of officers for central deputation", leading to a shortage in meeting Union government needs. Its earlier letters (on December 20 and 27 and January 7) soliciti comments from the states elicited limited response, prompting it to revise the proposal in the January 12 letter. Earlier last year, the DoPT had cautioned the states that not sending enough officers may affect future cadre review proposals. The Centre is apparently unable to fill vacancies at director and joint secretary levels in various Union ministries. Among the Central Secretariat Service (CSS) posts lying vacant, 390 are at joint secretary level (experience of 19-plus years) and 540 are for deputy secretary (nine years) or director ranks (14 years of service).

At stake now is the move to amend Rule 6 of the IAS (Cadre) Rules, 1954, which governs central deputation in the IAS. According to it, an AIS officer can be posted at the Centre with the concurrence (no objection certificate) of the concerned state government. The DoPT asks states to send an annual list of names of AIS officers willing to go on central deputation, from which it then selects officers. The new proposal is prompted by a persistent shortage of officers on central deputation. As of January 1, 2021, only 458 IAS officers were on central deputation out of around 5,200 IAS officers in the country. Indeed, some states have nominated very few officers for deputation to the Centre. Madhya Pradesh (with just 24 of 370 IAS officers on central deputation), West Bengal (28 out of 298), Rajasthan (12 out of 241) and Telangana (9 out of 164) are conspicuous on this list (see *Cadre-wise Breakup of IAS Officers*). In fact, actual deputation as a percentage of the mandated reserves fell from 69 per cent in 2014 to 30 per cent in 2021, suggesting that the DoPT has a valid concern.

EARLIER CHANGES

The DoPT has already made two significant changes in less than a decade. In August 2017, the Union government revised the cadre allocation policy, ostensibly to ensure national integration of the bureaucracy and ensure an all-India character for the services. The existing state cadre were divided into five zones. Under the policy, a candidate has to first give their choice in descending order of preference from among the zones. Subsequently, they have to indicate a preferred cadre from each selected zone. The second cadre preference for every preferred zone is indicated subsequently. The process continues till the candidate exhausts the list. No change is permitted afterwards. Officers continue to work in the cadre they are allotted or are deputed to the Government of India. In 2020, to ensure more officers at the Centre, the DoPT made it mandatory for IAS officers from the 2007 batch on to serve at least three years on central deputation at the level of deputy secretary and above in order to be considered for empanelment and appointment in higher ranks—as a joint secretary, additional secretary or secretary.

Now, Delhi wants to acquire overriding power if the state delays sending an officer on central deputation. It has proposed that "the officer shall stand relieved from cadre from the date as may be specified by the central government".

The problem is that the majority of bureaucrats are comfortable staying in the states. But central deputation of the AIS officers, be it IAS or IPS, ensures a two-way movement of officers which is beneficial for the states as well the Union government. It also enhances domain expertise of individual officers and widens their experience.

COMBATIVE FEDERALISM

The states, though, view the move with suspicion. West Bengal chief minister Mamata Banerjee was the first to assert her opposition in a letter to the prime minister on January 13. In her third letter on the issue, she called it a draconian move, emphasising that the proposed amendment is against the "spirit of co-operative federalism", "taking the matter to non-federal extremes" besides being against the "basic structure of India's constitutional scheme".